

The Claremont City Council held a meeting on Wednesday, April 14, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Assistant Mayor Damren at 6:30 p.m.

Assistant Mayor Damren read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

By telephone:

1-646-558-8656

Webinar ID: 815 2945 7408

Passcode: 739587

If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – home, alone

At-Large Councilor Dale Girard – home, alone

Assistant Mayor Allen Damren – home, alone

At-Large Councilor Debora Matteau – home, alone

Ward II Councilor James Contois – was having technical difficulties and joined late

Ward III Councilor Jonathan Stone – Council Chambers, public

Absent:

At-Large Councilor Erica Sweetser

Mayor Charlene Lovett

At-Large Councilor Nicholas Koloski

Also present:

Edward Morris, City Manager

Mary Walter, Finance Director

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Councilor Matteau and seconded by Councilor Girard to accept the minutes of the March 3, 10, and 24, 2021, City Council meetings.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois – technical difficulties

Stone - yes

Motion carried 5-0.

MAYOR’S NOTES

None

CITY MANAGER’S REPORT

- **Finance Director Search Process** – We have begun the recruitment for the Finance Director position and have already received applications from qualified candidates. I plan on using a collaborative multi-interview process as I have done in the past for Director level positions. This process will allow me to get feedback on the applicants from many different points of view, before I make my final decision. I would like to invite the City Council to participate in this process, by appointing two Council representatives to serve on separate interview boards.

The interviews will start in early May with second interviews planned for later that month. I hope to have someone chosen by early June with a start date sometime in July.

In preparation for a gap in services, I have spoken with MRI and have received costs to contract someone to help in the Finance Department, just in case we need their services during the transition.

Mr. Morris asked if the Council would like to appoint one or two Councilors to participate in the process (one on each of the two interview boards). Councilor Stone recommended three Councilors instead of two, which will give a better representation of the Council. Mr. Morris said he wanted to have two, one on each interview. Councilors Matteau, Girard, and O’Hearne expressed interest in being part of the interviews. Mr. Morris said he wanted to have two Councilors, one in each interview to make it even. Assistant Mayor Damren said that three Councilors volunteered, so let’s see if we can work with that.

- **147 Main Street Update** – Work continues at 147 Main Street, and the contractor chosen by Kevin Lacasse will start the rebuilding of the wall on the east side of Mr. Lacasse's building. The protection of the wall leaning against 131 Main Street will stay in place until the east wall is completed, and the shoring that is stabilizing 147 Main Street is removed.
- **Teamsters Union Update** – Last month the City filed its objection to some of the positions that were listed on the petition for certification by Teamsters Local 633 of New Hampshire. There is a hearing scheduled with the Public Employees Labor Relations Board for May 6, 2021. As we prepare for the hearing, the City, through our attorney, continues to keep communications open with the Teamsters, in hopes of coming to an agreement prior to the hearing date.
- **Steel Mill Solar-** The Steel Mill Solar project continues to move forward, and the company is in the review phase of the project. The Option agreement expires October 2021, but they can extend to March 2022. At any time during the Option period, Steel Mill Solar can exercise the lease. The City has also had preliminary discussions with Steel Mill Solar about a power purchase agreement for municipal purposes. When construction is slated to begin, we will update the City Council. We will also be coming before the City Council with details of the power purchase agreement, when more detailed information is available.
- **First Congregational Church Cell Phone Tower** - U.S. Cellular has informed the Planning and Development Department that the cell tower construction project is moving forward, but they have not started work there yet. The site plan for this project is valid until October 30, 2021.
- **FEMA Reimbursement Update** – The City has received notice that we will be receiving the 25% FEMA reimbursement for the City's first FEMA reimbursement request that was paid at 75%. This 25% reimbursement will be \$19,364.01. The City's 2nd FEMA submission is awaiting approval, which we expect to receive within a few days, for \$50,179.07.
- **Earth Day-** The City of Claremont will be coordinating clean-up efforts across the City of Claremont over the next few weeks in Celebration of Earth Day. Below is a list of events the City will be participating in and helping with clean-up efforts:

April 18th

Rocky Beliveau

Start: 11:00 am End: 1:00 pm

Location:

Rocky's Taqueria

26 Opera House Square

Trash bags and gloves provided by Rocky

(snack provided by Rocky after bags returned)

DPW collecting bags after the clean up

April 24th (Two events)

Litter Pick-up

9:00 am to 1:00 pm (cooking times 10:00 am to 12:30 pm)

Parties hosting: Claremont Parks & Rec / Claremont Public Works

Support Elements: Claremont Kiwanis Club / Claremont Savings Bank

Location: Claremont Saving Bank Parking lot

DPW collecting bags after clean-up efforts

City of Claremont Free Tire Day

Start: 8:00 pm to 3:45 pm

875 Washington Street (Transfer Station)

Claremont residents with a Transfer Station decal may drop off car and/or light truck tires (less than 20" – with or without rims). (Businesses are not eligible and residents must have Transfer Station decal)

City of Claremont Leaf and Grass Clippings Pick Up

All leaves and grass must be in compostable paper bags, and be at the curbside by 7:00 am on Monday, April 26, 2021. DPW crews will pick up the bags the week of Monday, April 26, 2021, through Friday, April 30, 2021. Bags in each area of the City will only be picked up once.

May 7th

Jeff Barrett from Ink Factory Green Up Day

We are still waiting for the details.

- **River Valley Community College President's Community Partner Award** – I am happy to announce that Fire Chief Burr has been selected for the River Valley Community College President's Community Partner Award. This award is given to non-profit organizations or people who have enhanced the quality of life in the community in meaningful and measurable ways and engaged in the development of sustained, reciprocal partnerships with the college. Here is a copy of the nomination request submitted on Chief Burr's behalf:

Claremont City Fire Chief Bryan Burr has been a key-player to the response of the COVID pandemic for Sullivan County, as well as an outstanding community partner to River Valley Community College. Starting back when the COVID pandemic first began, River Valley closed abruptly because of a concern of exposure. Chief Burr offered immediate support by coming to our campus to ensure that staff and students had everything needed to handle the situation.

The partnership continued when RVCC was recommended as a point-of-distribution for the COVID vaccine. Chief Burr has been instrumental in the

planning and success of the distribution of the vaccine to the Sullivan County community from our Claremont campus. Chief Burr, the Claremont Fire Department, and Claremont Police supported the National Guard to ease the flow of on-site traffic at the drive-thru vaccine clinic which distributed up to 600 doses of vaccine per day.

River Valley Community College is proud to be a partner in Claremont's emergency response. We recognize Chief Burr for his skilled emergency planning, outreach efforts, and city-wide coordination throughout the COVID pandemic. He has been the key link for aligning vital resources to fight the pandemic.

This is a much-deserved award for Fire Chief Burr's dedication and commitment to the Citizens of Claremont and Sullivan County during this pandemic. Fire Chief Burr has worked countless hours including nights and weekends to ensure that the businesses, organizations, and citizens of our community have the support and services needed to get through this pandemic. I would like to thank Fire Chief Burr for all he has done, and congratulate him on this much deserved recognition. He said that Councilor Contois had asked for an update on two burned properties, 28 Myrtle Street and 24 Bellic Street. Both have a demolition permit. 28 Myrtle Street is awaiting the final asbestos report to be submitted and 24 Bellic is awaiting asbestos inspection.

At 6:52 p.m. Councilor Contois joined the meeting.

Mr. Morris said that Councilor Matteau had asked for an update on board minutes. As of today, the Claremont Police Commission's minutes have been received and should be posted soon. Trustee of Trust Funds' last meeting was 12/28 and the last set of minutes posted are from 12/14. He'll check on that. Every other board's minutes that are past the five business days have been posted as requested by the Council, with the exception of the Policy Committee and we are working with Councilor Stone on that. He noted that posting minutes within five business days is not part of RSA 91-A.

- **COVID-19 Update** – At the time this report was written, active COVID-19 cases throughout the State of New Hampshire have been on the rise. The City of Claremont currently has 16 active cases. The current Sullivan County infection rate is .92% which means we are getting close to a rate where each infected person is spreading the virus to one more person.

As of today, Claremont has 11 active cases. NH is steadily increasing. Claremont's numbers have gone down. 93% infection rate. Smaller numbers and the percentage tends to be higher.

In order to reduce these numbers in Claremont, we must continue our efforts to control the spread of the virus. With the nice weather, and many people either being vaccinated, or in the process of being vaccinated, it is easy to let our guard down. If people stay at home as much as possible, social distance and wear masks when in public, maintain hand hygiene and sanitization efforts, we will hopefully see a reduction in active COVID-19 cases.

Vaccinations:

As reported, the State vaccination site has moved from the River Valley Community College campus in Claremont, to 62 John Stark Highway (the Shaw's Plaza) in Newport NH. This change is due to the State of New Hampshire privately contracting out vaccination services. Everyone scheduled for a vaccination at the Claremont site should have received notice that their vaccine will now be administered at the new site.

At this time all New Hampshire residents, over the age of 16, can register to receive their vaccination.

Councilor Matteau asked if there is any data on the percentage of Claremont citizens that have gotten vaccinated. Mr. Morris said he can check.

APPOINTMENT TO BOARDS AND COMMITTEES

None

CITIZEN'S FORUM

None

OLD BUSINESS

Leasing of Land Along the Rail Trail along 287-299 Washington Street

The US Department of Transportation (DOT) directed Mr. Morris to contact Bill Watson from the NH DOT to work through the possibility of licensing land along the Rail Trail. Mr. Watson has approved the City licensing land along the Rail Trail, as long as the use is in the public interest, and that full and safe access to the Trail is maintained for non-motorized Trail users.

At our past meetings, we discussed the use of City land in front of 297 to 299 Washington Street. During this process, we have also spoken with Mr. Reed at 287 Washington Street about the portion of land along the Rail Trail that his business uses.

For this meeting, Mr. Morris is asking the City Council to authorize him to enter into a lease agreement with Sheazach Properties LLC for the use of the City-owned property, from the property line in front of parcels 133-57, 133-58, and 133-59 to the Rail Trail, in exchange for the

taxable amount of that property. He is also asking the City Council to authorize him to enter into a similar agreement with Scott Reed for the use of land in front of parcel 133-56.

The City has a history of leasing City-owned land for commercial use in this manner, such as:

- Land leased to Gary LeClair for agricultural use
- American Brush on airport land
- Costa Precision on airport land

Mr. Morris said this should be listed as a license agreement, not a lease. The proposed motion is written correctly.

Mr. Morris said that Mr. Watson said he would approve and help write the licensing agreement. The only thing added from previous discussions is the section of land in front of Mr. Reed's property. The City brought this to Mr. Reed because he has had vehicles on the Rail Trail for a long time just as Mr. Hurd has.

Councilor Matteau said the map was difficult to read and said she would like to see a site plan.

Councilor Girard asked if the City's attorney had been consulted regarding the license. Mr. Morris said he has had a discussion with the attorney, but the City doesn't have a legal opinion.

Mr. Morris said the City is planning to come to the next Council meeting with a trapped parcel that someone is looking to develop and needs access across the Rail Trail.

Councilor Contois said he takes exception to being locked into a 10-year license. Mr. Morris said the City can cancel the license at any time. Council can put any time limit it wishes on the license.

Councilors O'Hearne and Girard asked about an encroachment on Chestnut Street. Parks and Recreation Director Mark Brislin said he is not aware, but can look into that.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to table.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - no

Matteau - no

Contois - yes

Stone - yes

Motion carried 4-2.

Mr. Morris asked for more information. Assistant Mayor Damren said that Councilor Matteau stated she would like to see a site plan. Councilor Stone would like the Council to direct the City Manager to seek a legal opinion.

Councilor Matteau would like to see a complete license agreement for each parcel before the vote. She asked if with all the delays that people are using the property without paying for it. Mr. Morris said yes. Assistant Mayor Damren said it would be in the best interest to bring this back sooner rather than later.

Sullivan County ATV Club Biennial Trail Permission

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to take this off the table.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0.

Steven Wilkie, Sullivan County ATV Club (SCATV) President, said that since the last Council meeting, they have researched other options, but none will be fast. They are searching for all options. There are some options on the Newport side and a couple on the Claremont side. They will put in for Grant in Aid which is due May 7th. He talked about the law that came into effect in September of 2019 requiring notification of abutters on Class V roads before permissions are granted to drive ATVs on those roads. SCATV needs to send out verified mail to abutters, so they would like to remove the Class V portions of the roads from this permission request. Those roads are Cat Hole Road, Veterans Park Road, Slab City Road, and Roberts Hill Road. SCATV would like to ask for permission to use the trails and Class VI roads on the list for a two-year period. The Class V roads can be addressed at another meeting.

Mr. Wilkie suggested Claremont create an OHRV Task Force consisting of the Police, Public Works, SCATV Club, and business owners, just as other municipalities have done. It can address trash, burned out vehicles, etc.

Councilor O’Hearne suggested making the permission a one-year term and Mr. Wilkie was okay with that.

Councilor Contois talked about Mike and Maggie Saracino, Cat Hole Road residents, and the concern about their property being “unlivable.” He said he likes the Club coming to Claremont, but doesn’t think the ATVs should be on the City highways.

With the Class V roads off the list, Mr. Wilkie was asked how ATVs will get to the Class VI roads. Mr. Wilkie said they have access from Cornish, Newport and Croydon, but he doesn’t believe there is any way to eliminate users from the Class V roads. Taking the Class V roads off

the list eliminates parking. Normally, they can park 50-60 vehicles at Burger King 50-60, but now the available parking would be for 8 or so vehicles.

Mr. Morris explained the process of the Class V portion of Cat Hole Road going from pavement to dirt. Previous to these discussions, that section had been placed on a list to be repaved.

There was a discussion about the City working with SCATV on a grant from the NH Bureau of Trails. Use of the Class V portion of Cat Hole Road would have to be approved in order to get grant approval.

It was acknowledged that trailers would be allowed to drive on the Class V portion of Cat Hole Road and that since there is only room for 8 or 9 vehicles in the parking area, that would be less traffic in front of the Saracinos' property than the hundreds of ATVs that normally go by.

Mr. Morris said that Mr. Wilkie plans to come back to the Council prior to Memorial Day. Signage will be posted. He clarified that in addition to trucks and trailers, dual sport motorcycles will be allowed up there on the Class V road.

A motion was made by Councilor Girard and seconded by Councilor Stone that the Claremont City Council, pursuant to RSA 215-A:15, hereby authorizes the city manager, or his designees, to take such actions as may be necessary to issue a written Permission for Wheeled Vehicle Trail Access to the Sullivan County ATV Club for a period of one year from the expiration of the current Permission. This Permission is for use of designated City-owned land and class VI highways, which lists are to be included with the Permission Form and is subject to all City and state rules and regulations pertaining to use of ATVs and other off-highway recreational vehicles on public property. This Permission is granted subject to the following conditions:

- 1. The City may close one or more parcels of land, trails or roads to ATV use for reasons including but not limited to trail conditions, maintenance and public safety.**
- 2. Does not include the Class V portion of Cat Hole Road, Veterans Park Road, Slab City Road and Roberts Hill Road.**

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0.

City Fee Schedule – Public Hearing

Mr. Morris said the changes that were discussed at the last Council meeting were incorporated into the City Fee Schedule. Copy charges were all referred to the All Departments page.

Regarding the Non-Resident fee in the Library, the Library Director Michael Grace provided fees from other cities to the Council for reference. Mr. Morris said the City feels these fees are appropriate.

A motion was made by Councilor Matteau and seconded by Councilor O'Hearne to remove City Fee Schedule from the table.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Roll call vote: 6-0.

A motion was made by Councilor Contois and seconded by Councilor Matteau to adopt the City Fee Schedule.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Regarding moving toward a single water rate, Mr. Morris said that is something the City is looking at. There will be a water and sewer rates presentation at the next Council meeting. If the City were to move to a single rate at this time, there would be a large increase for small water users. Public Works Director Alex Gleeson said the goal is to consolidate the rates over time.

Roll call vote:

O'Hearne - no

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 5-1.

Legislative Update

Mr. Morris said the Legislative Update was mostly about the elimination of the SAG (State Aid Grant) payments for FY22/23 as approved by the House Finance Committee. That would be a loss of \$212,416 in FY22 and \$210,933 in FY23 for the City. He is preparing a letter to Senator Suzanne Prentiss to ask her to vote in favor of restoring the SAG payments. If the Council is in favor, he can work with Mayor Lovett and make the letter from him and the Council. Councilors agreed to that.

Councilor Contois noted that Councilors, as individual citizens can contact their Representatives and Senator to request the funds be restored.

Mr. Morris said all citizen requests to the Senator and Representatives would be helpful. The State is also talking about not restoring Rooms and Meals.

Selection Process for Boards, Committees and Commissions

Councilors agreed to defer this to another meeting so that the other Councilors could be present for the discussion.

Focus Areas to Support Priority Areas

Councilors agreed to move this to another meeting.

NEW BUSINESS

Resolution 2021-26 Changing the Purpose and Withdrawal of Capital Reserve (Fountain Project) – Public Hearing

WHEREAS the City Council, on September 9, 2015, voted to accept a donation from Cumberland Farms (now known as EG America) in the amount of \$5,000.00 for a Fountain Project; and

WHEREAS the project has changed; and

WHEREAS EG America has given its permission to Ernest Montenegro and the City of Claremont to use the donated money for a Swimmer Sculpture, created by Ernest Montenegro and to be placed at the Claremont Savings Bank Community Center; and

NOW THEREFORE BE IT RESOLVED by the City Council to approve the change of the restricted donation and to raise, appropriate and expend the sum of \$5,299.83 (donation plus interest) from the Fountain Project Capital Reserve Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw and close-out said funds from the Fountain Project Capital Reserve Fund; and pay out said funds to Ernest Montenegro upon invoice to the city;

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

Mr. Morris said that Ernest Montenegro asked to use the money, that he had worked with Cumberland Farms to get donated for a fountain in Opera House Square. The fountain project will not go forward. Instead, the money will be used to purchase the Swimmer Sculpture,

created by Mr. Montenegro, to be displayed at the Claremont Savings Bank Community Center, just outside the pool. Mr. Morris said Cumberland Farms, now operating as EG America, is agreeable to the change.

Ernest Montenegro said this is a piece that he built at the Claremont MakerSpace while he was the Artist-in-Residence. He said American Plate Glass will cover the piece with safety glass and Stone Forge will build a steel piece to elevate it. It will be on casters in order to be moved more easily.

Mark Brislin, Parks and Recreation Director, said that the sculpture will go inside the foyer area by the gym and pool.

Mr. Morris said the City will create an invoice in order to purchase the sculpture from Mr. Montenegro, using the money that is in the Capital Reserve. Mr. Montenegro said there will be a dedication and a plaque honoring Cumberland Farms' gift.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

A motion was made by Councilor Contois and seconded by Councilor Matteau to adopt Resolution 2021-26 Changing the Purpose and Withdrawal of Capital Reserve (Fountain Project).

Councilor Contois read the resolution into the record.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0.

Capital Improvement Plan

On January 27, 2021 the City Council accepted the Capital Improvement Plan 2022-2027 as originally presented by the Planning Board. During discussion a question was asked about the Library - exterior or roof work, City Hall clock tower, and DPW sidewalks. Those inquiries were made to the departments.

At this time the Library does not have building exterior or roof work to add to the plan, but they do anticipate having something next year.

DPW indicated that maintenance and replacement of existing sidewalks was in the CIP, but they did not add new sidewalks as the UVLSRPC is conducting a complete assessment of sidewalks

(including dimensions, materials, age, condition), crosswalks and ADA compliance. That study will be complete at the end of this year. DPW will be adjusting sidewalk needs accordingly in next year's CIP, including whether and where new sidewalks should be added.

The City Hall clock tower should have been in the plan. The Planning Board reviewed and scored the clock tower dome roof project and have added it to the CIP. Attached is the architect's documentation and Planning Board minutes as well as a motion to accept the City Hall clock tower project as part of the 2022-2027 Capital Improvement Plan.

Mr. Morris said when the CIP was brought before the Council, there was discussion about the copper dome on City Hall. The Planning Board has approved this.

Nancy Merrill, Planning and Development Director, said that the CIP was long and that the dome got missed. The Planning Board approves the CIP and the Council accepts it.

A motion was made by Councilor Girard and seconded by Councilor Matteau that WHEREAS the City Council accepted the Capital Improvement Plan on January 27, 2021, now the Claremont City Council hereby accepts an amendment to include the City Hall Clock Tower Dome as approved on March 8, 2021, by the Claremont Planning Board.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0.

Local Source Water Protection Program Grant – Public Hearing

On November 2, 2020, an application was submitted to NHDES for a Local Source Water Protection Grant in order to build water source protection information kiosks at our City's reservoirs. The grant application was approved and the request is for the City to accept a \$3,500 grant. Public Works has partnered with Mr. Bennett at Sugar River Valley Regional Technical Center and if approved, will be constructing the kiosks with their Year 1 and Year 2 Building Construction classes. Public Works will install the completed kiosks at the Reservoirs.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

A motion was made by Councilor Matteau and seconded by Councilor Girard to authorize the City Manager, or his designees, to accept and expend a grant in the amount of three thousand, five hundred dollars (\$3,500.00) and to enter into an agreement with the New Hampshire Department of Environmental Services for Source Water Protection Information Kiosks.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0.

Resolution 2021-27 Drinking Water and Groundwater Trust Fund Grant – Public Hearing

WHEREAS, the City wishes to accept funds from the New Hampshire Drinking Water & Groundwater Trust Fund to complete projects relating to the removal of lead lines from the Claremont Water System; and

WHEREAS, in accordance with the “2020 Award Plan”, the NH Drinking Water & Groundwater Advisory Commission requires that a funding application for the Construction Projects Assistance Program include an “authority to submit application” to meet the threshold for project readiness; and

WHEREAS, these actions are in response to the application acceptance; and

WHEREAS, the City presently has lead components in the water lines that provide service to the residents of Claremont; and

WHEREAS, the City wishes to protect the health and wellbeing of its citizens by replacing all the lead water lines:

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to borrow \$1,500,000 from the NH Drinking Water State Revolving Fund and accept \$500,000 from the NH Groundwater Trust Fund and enter into grant and loan agreements.

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents, including the loan and agreements, related to this resolution, and the city treasurer is hereby authorized to act on behalf of the Water Enterprise Fund by signing monetary disbursements. *(2/3 Vote Required)*

Mr. Morris explained that in 2020, the City had applied for two \$2 million loans to remove lead from the Claremont Water System. As was stated, the goal was not to borrow more than \$2 million, but to maximize forgiveness on loans up to \$2 million. The City has been awarded a \$500,000 grant from NH Ground Water Trust Fund and a \$1.5 million SRF loan with a 10% forgiveness.

Mr. Gleeson said these funds will be used to replace any known lead in the system (i.e. lead service lines, water mains). He confirmed through DES (Department of Environmental Services) that these funds are not affected by the potential elimination of the State Aid Grants. Mr. Morris clarified that this is not just for lead removal. The City will be replacing some old infrastructure as well.

Councilors asked about the payment terms and interest. Ms. Walter said she didn't have the information, but that generally bond payments have been about 2%, and the City can choose the number of years (i.e. 5, 10, 15, 20 years).

A motion was made by Councilor Girard and seconded by Councilor Stone to table until we get the information on the loans.

Assistant Mayor Damren asked if tabling would be a problem. Mr. Gleeson said phase 1 has started and the monies have been accounted for. He said phase 2 would start after the beginning of May.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - no

Contois - no

Stone - yes

Motion carried 4-2.

Assistant Mayor Damren said this would come back at the next meeting in April.

Public Works Vehicle Color Discussion

Mr. Morris said the original reasons for changing vehicle colors was the cost of custom painting; the delay in receiving the vehicles; and safety issues from the high visibility yellow shirts being a similar color to the trucks. He acknowledged that the shirt color could be changed. The primary reason is the cost. There are 23 F550, or equivalent sized trucks, or smaller; and 12 dump trucks, sweeper, vac. The average cost for the custom color is \$650, which is approximately \$20,000 for the fleet. New vehicles are typically purchased because the current ones are not working well, so the time delay could be issue. He looked at other communities and they use factory colors for the same reasons. He recommended moving forward with the factory red color. However, if the Council wishes, the City will continue purchasing the fire yellow color.

Councilor Contois said this Council has important work to do and thinks it is micromanaging to not allow the City Manager and the Public Works Director to pick out the color of a truck.

Councilors O'Hearne, Matteau, Stone, and Girard agreed the City should keep the fire yellow color.

Assistant Mayor Damren said this is an operational concern, not a policy issue, and he will leave it to the City Manager, Public Works Director, and Public Works Assistant Director to decide.

A motion was made by Councilor Girard and seconded by Councilor O’Hearne to request the City Manager to use the fire yellow moving forward.

Assistant Mayor Damren regards this as an inappropriate motion as this is an operational matter and he will vehemently vote no.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - no

Matteau - yes

Contois - no

Stone - yes

Motion carried 4-2.

Budget Schedule Discussion

Mr. Morris proposed June 5th for an all-day budget meeting leaving the two meetings in May to present the budget and the fiscal state of the City. The second meeting in May could answer questions asked by the Council and smaller budgets could be presented. There would still be two meetings after the all-day session on June 5th in order to answer questions, hold the public hearing and hold the final vote. He also proposed May 27th for the all day session.

It was the consensus of the Council to hold an all-day budget meeting on June 5th.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Girard said Council had received an email from Chuck Allen, Arrowhead Recreation Area regarding Ordinance 533. Councilor Girard asked for an update. He also asked for an update on the Boston Post Cane. Mr. Morris said Ordinance 533 will be discussed at the next Licensing Board meeting and he will make a recommendation to forward it to the Policy Committee. Ms. Russell said one application has been received for the Boston Post Cane.

Mr. Morris gave a recap on Council requests:

- Look for detailed vaccination data on Claremont

- Legal opinion, finish drafting license agreement, and better map of the Rail Trail in front of Mr. Hurd's property
- Work with Mr. Wilkie, Sullivan County ATV Club, re: ATVs on Class V roads
- Move selection process for Boards, Committees and Commissions, and Focus Areas from the Council to another meeting
- Schedule June 5 for the Saturday budget meeting
- Move forward with the Boston Post Cane process

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:55 p.m., a motion was made by Councilor Matteau and seconded by Councilor Girard to adjourn.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council